

Court No. - 29

Case :- WRIT - C No. - 22638 of 2019

Petitioner :- Mohd. Naushad

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Amit Kumar Srivastava

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Pankaj Mithal,J.

Hon'ble Saral Srivastava,J.

In challenging the impugned recovery citation dated 24.06.2019 for a sum of Rs.16,22,810/- as electricity dues the submission of counsel for the petitioner is that the procedure prescribed under Section 126 of the Electricity Act, 2003 was not followed.

Sri Pranjal Mehrotra, learned counsel appearing for the respondent No.3 may seek instructions if the petitioner was provisionally assessed and was given opportunity to file objections against the same.

As prayed by him put up on Tuesday i.e.23.07.2019 in the additional list.

Order Date :- 18.7.2019

piyush

Court No. - 29

Case :- WRIT - C No. - 22638 of 2019

Petitioner :- Mohd. Naushad

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Amit Kumar Srivastava

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Pankaj Mithal,J.

Hon'ble Saral Srivastava,J.

Heard learned counsel for the petitioner and Sri Pranjal Mehrotra, learned counsel for respondent No.3.

The petitioner by means of this petition has assailed the recovery citation dated 24.06.2019 whereunder a sum of Rs. 16,22,810/- are sought to be realized from him as electricity dues.

Learned counsel for the petitioner had argued that the procedure prescribed under Section 126 of the Electricity Act, 2003 was not followed and as such the recovery is bad in law.

On the aforesaid submission of the counsel for the petitioner, Sri Pranjal Mehrotra was directed to obtain instructions and to produce documents to show the procedure which was followed in issuing the impugned recovery citation.

Sri Pranjal Mehrotra has produced the documents and a bare perusal of the same reveals that during the checking on 16.04.2018 petitioner was found using electricity unauthorizedly. He was found charging battery of 20 e-rickshaws illegally directly from the line.

Accordingly, he was provisionally assessed for the use of electricity on 18.04.2018. The copy of the provisional assessment was sent to the petitioner by registered post as is evident from the dispatch register which contains the receipt of the registered post.

The petitioner failed to file any objection to the provisional assessment and accordingly deeming the assessment to be final, the demand notice was issued to him on 17.04.2019 to pay a sum of Rs. 16,22,810/- but the petitioner failed to deposit the said amount. Accordingly, the impugned citation has been issued.

In view of the above, the entire procedure as prescribed under

Section 126 of the Act and the U.P. Electricity Supply Code, 2005 was followed in issuing the impugned citation.

It is not the case of the petitioner that during the checking, he was not found using electricity unauthorizedly or that the provisional assessment was not served upon him.

In view of the aforesaid facts and circumstances, we find no error or illegality on part of the respondents in issuing the impugned recovery citation so as to recover the electricity dues as arrears of land revenue.

The petition lacks merit and is, accordingly, **dismissed**.

Order Date :- 23.7.2019

Nirmal Sinha